

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1733

By: Moore

AS INTRODUCED

An Act relating to sales tax code; amending 68 O.S. 2021, Section 1353, as last amended by Section 4, Chapter 441, O.S.L. 2024 (68 O.S. Supp. 2024, Section 1353), which relates to apportionment of revenues; modifying limits on the Oklahoma Tourism Promotion Revolving Fund; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 68 O.S. 2021, Section 1353, as last amended by Section 4, Chapter 441, O.S.L. 2024 (68 O.S. Supp. 2024, Section 1353), is amended to read as follows:

Section 1353. Purpose of article - Apportionment of revenues.

A. It is hereby declared to be the purpose of the Oklahoma Sales Tax Code to provide funds for the financing of the program provided for by the Oklahoma Social Security Act and to provide revenues for the support of the functions of the state government of Oklahoma, and for this purpose it is hereby expressly provided that, revenues derived pursuant to the provisions of the Oklahoma Sales Tax Code, subject to the apportionment requirements for the Oklahoma

Tax Commission and Office of Management and Enterprise Services
Joint Computer Enhancement Fund provided by Section 265 of this
title, and further subject to the apportionment requirement provided
in subsection D of this section, shall be apportioned as follows:

1. Except as provided in ~~subsection~~ subsections C and D of this
section, the following amounts shall be paid to the State Treasurer
to be placed to the credit of the General Revenue Fund to be paid
out pursuant to direct appropriation by the Legislature:

Fiscal Year	Amount
FY 2003 and FY 2004	86.04%
FY 2005	85.83%
FY 2006	85.54%
FY 2007	85.04%
FY 2008 through FY 2022	83.61%
FY 2023 through FY 2027	83.36%
FY 2028 and each fiscal year thereafter	83.61%;

2. The following amounts shall be paid to the State Treasurer
to be placed to the credit of the Education Reform Revolving Fund of
the State Department of Education:

- a. for FY 2003, FY 2004 and FY 2005, ten and forty-two
one-hundredths percent (10.42%),
- b. for FY 2006 through FY 2020, ten and forty-six one-
hundredths percent (10.46%),
- c. for FY 2021:

- (1) for the month beginning July 1, 2020, through the month ending August 31, 2020, ten and forty-six one-hundredths percent (10.46%), and
- (2) for the month beginning September 1, 2020, through the month ending June 30, 2021, eleven and ninety-six one-hundredths percent (11.96%),
- d. for FY 2022 and each fiscal year thereafter, ten and forty-six one-hundredths percent (10.46%);

3. The following amounts shall be paid to the State Treasurer to be placed to the credit of the Teachers' Retirement System Dedicated Revenue Revolving Fund:

Fiscal Year	Amount
FY 2003 and FY 2004	3.54%
FY 2005	3.75%
FY 2006	4.0%
FY 2007	4.5%
FY 2008 through FY 2020	5.0%
FY 2021:	

- a. for the month beginning July 1, 2020, through the month ending August 31, 2020 5.0%
- b. for the month beginning September 1, 2020, through

the month ending June 30,
2021 3.5%
FY 2022 5.0%
FY 2023 through FY 2027 5.25%
FY 2028 and each fiscal year thereafter 5.0%;

4. a. except as otherwise provided in subparagraph b of this paragraph, for the fiscal year beginning July 1, 2022, and for each fiscal year thereafter, eighty-seven one-hundredths percent (0.87%) shall be paid to the State Treasurer to be further apportioned as follows:

(1) twenty-four percent (24%) shall be placed to the credit of the Oklahoma Tourism Promotion Revolving Fund, but with respect to the fiscal year ending June 30, 2025, in no event shall such apportionment exceed Five Million Dollars (\$5,000,000.00) ~~in any fiscal year.~~ With respect to the:

(a) fiscal year beginning July 1, 2025, Thirty Million Dollars (\$30,000,000.00),

(b) fiscal year beginning July 1, 2026, Thirty-five Million Dollars (\$35,000,000.00),

(c) fiscal year beginning July 1, 2027, Forty Million Dollars (\$40,000,000.00), and

1 (d) fiscal year beginning July 1, 2028, Forty-
2 five Million Dollars (\$45,000,000.00) and
3 for each fiscal year thereafter,

4 (2) forty-four percent (44%) shall be placed to the
5 credit of the Oklahoma Tourism Capital
6 Improvement Revolving Fund, but in no event shall
7 such apportionment exceed Nine Million Dollars
8 (\$9,000,000.00) in any fiscal year, and

9 (3) thirty-two percent (32%) shall be placed to the
10 credit of the Oklahoma Route 66 Commission
11 Revolving Fund, but in no event shall such
12 apportionment exceed Six Million Six Hundred
13 Thousand Dollars (\$6,600,000.00) in any fiscal
14 year, and

15 b. any amounts which exceed the limitations of
16 subparagraph a of this paragraph shall be placed to
17 the credit of the General Revenue Fund; and

18 5. For the fiscal year beginning July 1, 2015, and for each
19 fiscal year thereafter, six one-hundredths percent (0.06%) shall be
20 placed to the credit of the Oklahoma Historical Society Capital
21 Improvement and Operations Revolving Fund, but in no event shall
22 such apportionment exceed the total amount apportioned pursuant to
23 this paragraph for the fiscal year ending on June 30, 2015. Any
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1 amounts which exceed the limitations of this paragraph shall be
2 placed to the credit of the General Revenue Fund.

3 B. Provided, for the fiscal year beginning July 1, 2007, and
4 every fiscal year thereafter, an amount of revenue shall be
5 apportioned to each municipality or county which levies a sales tax
6 subject to the provisions of Section 1357.10 of this title and
7 subsection F of Section 2701 of this title equal to the amount of
8 sales tax revenue of such municipality or county exempted by the
9 provisions of Section 1357.10 of this title and subsection F of
10 Section 2701 of this title. The Oklahoma Tax Commission shall
11 promulgate and adopt rules necessary to implement the provisions of
12 this subsection.

13 C. From the monies that would otherwise be apportioned to the
14 General Revenue Fund pursuant to subsection A of this section, there
15 shall be apportioned the following amounts:

16 1. For the month ending August 31, 2019:

- 17 a. Nine Million Six Hundred Thousand Dollars
18 (\$9,600,000.00) to the credit of the State Highway
19 Construction and Maintenance Fund created in Section
20 1501 of Title 69 of the Oklahoma Statutes, and
21 b. Two Million Dollars (\$2,000,000.00) to the credit of
22 the Oklahoma Railroad Maintenance Revolving Fund
23 created in Section 309 of Title 66 of the Oklahoma
24 Statutes;

1 2. For the month ending September 30, 2019:

2 a. Twenty Million Dollars (\$20,000,000.00) to the credit
3 of the State Highway Construction and Maintenance Fund
4 created in Section 1501 of Title 69 of the Oklahoma
5 Statutes, and

6 b. Two Million Dollars (\$2,000,000.00) to the credit of
7 the Oklahoma Railroad Maintenance Revolving Fund
8 created in Section 309 of Title 66 of the Oklahoma
9 Statutes;

10 3. For the month ending October 31, 2019:

11 a. Twenty Million Dollars (\$20,000,000.00) to the credit
12 of the State Highway Construction and Maintenance Fund
13 created in Section 1501 of Title 69 of the Oklahoma
14 Statutes, and

15 b. Two Million Dollars (\$2,000,000.00) to the credit of
16 the Oklahoma Railroad Maintenance Revolving Fund
17 created in Section 309 of Title 66 of the Oklahoma
18 Statutes;

19 4. For the month ending November 30, 2019:

20 a. Twenty Million Dollars (\$20,000,000.00) to the credit
21 of the State Highway Construction and Maintenance Fund
22 created in Section 1501 of Title 69 of the Oklahoma
23 Statutes, and
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1 b. Two Million Dollars (\$2,000,000.00) to the credit of
2 the Oklahoma Railroad Maintenance Revolving Fund
3 created in Section 309 of Title 66 of the Oklahoma
4 Statutes; and

5 5. For the month ending December 31, 2019:

6 a. Twenty Million Dollars (\$20,000,000.00) to the credit
7 of the State Highway Construction and Maintenance Fund
8 created in Section 1501 of Title 69 of the Oklahoma
9 Statutes, and

10 b. Two Million Dollars (\$2,000,000.00) to the credit of
11 the Oklahoma Railroad Maintenance Revolving Fund
12 created in Section 309 of Title 66 of the Oklahoma
13 Statutes.

14 D. For fiscal year 2029, and each subsequent fiscal year, Fifty
15 Million Dollars (\$50,000,000.00) shall be placed to the credit of
16 the Oklahoma Capital Assets Maintenance and Protection Fund created
17 in Section 2 of this act.

18 SECTION 2. This act shall become effective July 1, 2025.

19 SECTION 3. It being immediately necessary for the preservation
20 of the public peace, health or safety, an emergency is hereby
21 declared to exist, by reason whereof this act shall take effect and
22 be in full force from and after its passage and approval.

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24 60-1-12201 JL 01/15/25